

24NNCV02638 24NNCV02638

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-07-16

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Case Number: 24NNCV02638 Hearing Date: July 16, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

HAGOP MKHCHIAN, an Individual,

Plaintiff,

vs.

MARGARITA MKRTCHYAN, an

individual; ANI A. PETROSYAN, an individual; CAROLINE HAZARIAN, an

individual; FIDELITY NATIONAL TITLE COMPANY, a Delaware corporation; COMPASS

REAL ESTATE, a Delaware corporation; and All persons unknown, claiming any

legal or equitable right, title, estate, lien, or interest in the property

described in the Complaint adverse to Plaintiff's title, or any cloud on

Plaintiff's title thereto; DOES 1-10, inclusive,

Defendants.

Case

No.:

24NNCV02638

Hearing

Date:

July

16, 2026

Time:

8:30 a.m.

[Tentative]

Order RE:

MOTION

FOR TERMINATING SANCTIONS AGAINST DEFENDANT MARGARITA MKRTCHYAN

MOTION

FOR TERMINATING SANCTIONS AGAINST DEFENDANT ANI A. PETROSYAN

MOVING PARTIES:

Plaintiff

Hagop Mkhchian

RESPONDING PARTY: None.

The Court

considered the moving papers filed in connection with the instant motion.

BACKGROUND

On July 2,

2024, Plaintiff Hagop Mkhchian ("Plaintiff") filed this action

against Defendants Margarita Mkrtchyan ("Mkrtchyan"), Ani A.

Petrosyan ("Petrosyan"), Caroline Hazarian, Fidelity National Title

Company, Compass Real Estate, and all persons unknown, claiming any legal

or equitable right, title, estate, lien, or interest in the property described

in the Complaint adverse to Plaintiffs title, or any cloud on Plaintiff's title

thereto, alleging causes of action for (1) quiet title, (2) fraud and deceit,

(3) cancellation of instrument, and (4) negligence. The causes of action arise

out of an agreement between the parties to buy the Subject Property for use as

an assisted living facility.

On August 26, 2024, Mkrtchyan and Petrosyan filed a cross-complaint against Plaintiff and Malvina Mkhchian, alleging causes of action for (1) defamation, (2) intentional interference with prospective economic advantage, (3) negligent interference with prospective economic advantage, (4) breach of contract, (5) breach of fiduciary duty, (6) fraud, (7) intentional infliction of emotional distress, and (8) trespass.

On October 16, 2024, Compass California III, Inc. filed a cross-complaint against Mkrtchyan and Petrosyan, Carolina Hazarian, and Fidelity National Title Company, alleging causes of action for (1) equitable indemnity, (2) contribution, (3) declaratory relief, and (4) tort of another.

On November 11, 2024, Mkrtchyan and Petrosyan filed a first amended cross-complaint.

On June 12, 2025, Mkrtchyan and Petrosyan filed a second amended cross-complaint.

On September 10, 2025, the Court granted Compass California III, Inc.'s motion for judgment on the pleadings against Plaintiff.

On May 19, 2026, Plaintiff filed the instant motions for terminating sanctions against Mkrtchyan and Petrosyan. No opposition was filed.

On June 24, 2026, the Court continued the hearing on the instant motions and ordered the parties to telephonically meet and confer prior to the next court date.

LEGAL STANDARD

If a party fails to comply with a court order compelling discovery responses, a court may impose monetary, issue, evidence, or terminating sanctions. (Code Civ. Proc., § 2030.290, subd. (c) (interrogatories); §

2031.300, subd. (c) (demands for production of documents); § 2033.290, subd. (e) (requests for admission).) Code of Civil Procedure section 2023.030 provides that, “[t]o the extent authorized by the chapter governing any particular discovery method . . . , the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose . . . [monetary, issue, evidence, or terminating] sanctions against anyone engaging in conduct that is a misuse of the discovery process” Misuse of the discovery process includes “[f]ailing to respond or to submit to an authorized method of discovery,” “[m]aking an evasive response to discovery,” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010.)

Courts generally recognize two factual prerequisites to the imposition of non-monetary sanctions for violation of court ordered discovery: (1) a failure to comply with a court order, and (2) such failure must be willful. (See *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 496; *Biles v. Exxon Mobil Corp.* (2004) 124 Cal.App.4th 1315, 1327; *Liberty Mutual Fire Ins. Co. v. LCL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1102, citing *Vallbona v. Springer* (1996) 43 Cal.App.4th 1525, 1545.)

Further, “[e]ven where nonmonetary sanctions are called for, they should be appropriate to the dereliction The sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks, but the court may not impose sanctions which are designed not to accomplish the objects of discovery but to impose punishment.” (*Biles*, supra, 124 Cal.App.4th 1315 at p. 1327 [cleaned up] [internal citations and quotations omitted].) “Furthermore, the sanction chosen should not provide a windfall to the other party, by putting the prevailing party in a better position than if he or she had obtained the discovery sought and it had been favorable.” (*Rutledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164, 1193 [citations omitted].) 33

The party who failed to comply with discovery obligations has the burden of showing that the failure was not willful. (*Cornwall v. Santa Monica Dairy Co.* (1977) 66 Cal.App.3d 250, 252-253.)

DISCUSSION

A.

Terminating Sanctions

Plaintiff requests the Court impose a terminating sanction by an order striking Mkrtchyan and Petrosyan's answer and affirmative defenses to Plaintiff's complaint and entering default against Mkrtchyan and Petrosyan.

Code of Civil Procedure
section 2023.030, subdivision (d) states:

The Court may impose a
terminating sanction by one of the following orders:

(1) An order striking out the
pleadings or parts of the pleadings of any party engaging in the misuse of the
discovery process.

(2) An order staying further
proceedings by that party until an order for discovery is obeyed.

(3) An
order dismissing the action, or any part of the action, of that party.

(4) An
order rendering a judgment by default against that party.

On September 10, 2025,
Plaintiff served written discovery requests upon Mkrtchyan and Petrosyan,
comprised of form interrogatories, special interrogatories, requests for
production of documents, and requests for admission, with responses due on
October 11, 2025. (Marcum Decl., ¶ 3.) Mkrtchyan and Petrosyan's responses to
all of Plaintiff's discovery requests included the same boilerplate objections.
(Marcum Decl., ¶ 3.)

On April 20, 2026, the Court
ordered Mkrtchyan to serve supplemental responses to Plaintiff's form and
special interrogatories and ordered Mkrtchyan to pay \$2,002.99 in sanctions for
each of the two motions to compel. (Marcum Decl., ¶ 4; Exh. 1.) On April 21,
2026, the Court ordered Mkrtchyan to serve supplemental responses to

Plaintiff's requests for production of documents and requests for admission and ordered Mkrtchyan to pay an additional \$1,500.00 in sanctions for each of the two motions to compel. (Marcum Decl., ¶ 5; Exh. 2.) Mkrtchyan has not provided supplemental responses or paid the sanctions, totaling \$7,005.98. (Marcum Decl., ¶ 6.)

Similarly, on April 22, 2026, the Court ordered Petrosyan to serve supplemental responses to Plaintiff's form and special interrogatories and ordered Petrosyan to pay \$1,000.00 in sanctions for each of the two motions to compel. (Marcum Decl., ¶ 4; Exh. 1.) On April 23, 2026, the Court ordered Petrosyan to serve supplemental responses to Plaintiff's requests for production of documents and requests for admission and ordered Petrosyan to pay an additional \$1,000.00 in sanctions for each of the two motions to compel. (Marcum Decl., ¶ 5; Exh. 2.) Petrosyan also did not provide supplemental responses or pay the sanctions, totaling \$4,000.00. (Marcum Decl., ¶ 6.)

Mkrtchyan and Petrosyan engaged in misuse of the discovery process by failing to respond to Plaintiff's discovery requests and disobeying the Court's orders to provide supplemental responses and pay sanctions. (Code Civ. Proc., § 2023.010.) Mkrtchyan and Petrosyan, who have not opposed this motion, have failed to meet their burden of demonstrating that their failure was not willful. (Cornwall v. supra, 66 Cal.App.3d 250 at p. 252-253.)

However, in its June 24, 2026 Minute Order, the Court ordered the parties to meet and confer telephonically prior to the next court date in regard to the issues discussed at the hearing, including the unpaid sanctions and substantive discovery responses. The parties have not filed any further briefings with the Court advising on the parties' meet and confer efforts. Absent any showing of sufficient meet and confer efforts, the Court continues the hearing on the motion for terminating sanctions.

B.

Monetary Sanctions

Plaintiff

requests the Court impose further monetary sanctions totaling \$1,534.45 against Petrosyan and Mkrtchyan each in favor of Plaintiff, for the attorney fees and

costs associated with the preparation and filing of these instant motions.

Plaintiff's

counsel cites her billing rate as \$480.00 per hour and states that it took her three hours to prepare each of the instant motions, declarations, and proposed orders total of \$1,440.00. (Marcum Decl., ¶ 7.) Also, Plaintiff incurred filing fees of \$81.50 and e-filing fees of \$12.95. (Marcum Decl., ¶ 7.)

The

Court does not find further monetary sanctions appropriate. The Court already awarded significant monetary sanctions against Mkrtchyan and Petrosyan in its earlier motions. While the Court recognizes counsel's efforts bringing the instant motions, the ordering of terminating sanctions is sufficient for the instant motion. The Court notes that Mkrtchyan and Petrosyan's counsel was relieved on April 21, 2026, due to a breakdown in the attorney-client relationship. Further, as discussed above, the Court previously ordered the parties to meet and confer regarding the unpaid sanctions.

CONCLUSION

Based on the foregoing, the Court CONTINUES the hearing on Plaintiff's motion for terminating sanctions against Mkrtchyan and Petrosyan to 08/05/2026 at 8:30 AM.

The Court does not award further monetary sanctions.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 16, 2026

Sarah
J. Heidel

Judge
of the Superior Court